

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
June 18, 2026
8:30 a.m./1:30 p.m.

14. RYAN HAYNES V. SONYA LOSSIUS

PFL20210153

Respondent filed a Request for Order (RFO) on March 26, 2026, seeking modification of child custody and parenting plan orders. The parties were not referred to Child Custody Recommending Counseling (CCRC) as they had participated in CCRC within the prior six months. Proof of Service shows Petitioner was served by mail and electronically on March 26, 2026.

On April 14, 2026, the court in Department 8 referred the parties to CCRC with an appointment on April 27, 2026. The court ordered the CCRC report to be prepared on an expedited basis. However, a further review hearing was set in the event the report was not able to be prepared in a timely manner.

On May 7, 2026, the court continued the matter to the present date due to the lack of a CCRC report.

Both parties attended CCRC and were unable to reach any agreements. A report with recommendations was filed with the court on May 7, 2026. Copies were mailed to the parties on May 8th.

The court has read and considered the May 7th CCRC report. The court finds Petitioner has not overcome the presumptions of Family Code section 3044. The court maintains the present orders regarding legal and physical custody of the minor. The court adopts the recommendations as set forth in the May 7th CCRC report.

All prior orders not in conflict with these orders remain in full force and effect. Respondent is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #14: THE COURT FINDS PETITIONER HAS NOT OVERCOME THE PRESUMPTIONS OF FAMILY CODE SECTION 3044. THE COURT MAINTAINS THE CURRENT ORDERS FOR LEGAL AND PHYSICAL CUSTODY. THE COURT ADOPTS THE RECOMMENDATIONS AS SET FORTH IN THE MAY 7TH CCRC REPORT.

ALL PRIOR ORDERS NOT IN CONFLICT WITH THESE ORDERS REMAIN IN FULL FORCE AND EFFECT. RESPONDENT IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

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NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

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15. TIFFANY HENDERSON V. SAMUEL HENDERSON

24FL1253

Petitioner filed an ex parte application for emergency custody orders on March 27, 2026. Respondent filed an opposition on March 27, 2026. The court denied the request on an ex parte basis on March 30, 2026.

Petitioner filed a Request for Order (RFO) on March 30, 2026, seeking modification of child custody orders. Upon review of the court file, there is no Proof of Service showing Respondent was properly served.

Respondent filed a Responsive Declaration, Declaration of Theodore Henderson, and an Objection and Request to Strike on June 4, 2026. Proof of Service shows those were served on June 4, 2026.

Respondent filed a Supplemental Declaration as well as a Declaration of Thomas Price on June 8, 2026. Both were served the same day.

Petitioner filed a Supplemental Declaration as well as a Declaration of Counsel on June 8, 2026. There is no Proof of Service for these documents, therefore, the court has not considered them.

The court finds Respondent has waived any defect in service of the March 30th RFO, as he has filed a Responsive Declaration as well as Objections to its content.

The court sustains Respondent's Objections to Petitioner March 30th Declaration.

Parties are ordered to appear for the hearing.

TENTATIVE RULING #15: PARTIES ARE ORDERED TO APPEAR FOR THE HEARING.